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UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

OAKLAND DIVISION

BRENDAN NGWA NFORBI, Plaintiff, v. SANTIAGO MEZA-GONZALEZ, in his individual capacity; JOSE MELANO, in his individual capacity; and DOES 1 through 10, inclusive, Defendants.	Case No. 4:26-cv-08271-ASK **PLAINTIFF'S OPPOSITION TO DEFENDANTS' MOTION TO DISMISS PLAINTIFF'S FIRST AMENDED COMPLAINT AND MOTION TO STRIKE PORTIONS OF THE FIRST AMENDED COMPLAINT** Date: December 9, 2026 Time: 1:30 p.m. Courtroom: 4 Judge: Hon. Ajay S. Krishnan

Plaintiff Brendan Ngwa Nforbi, in propria persona, submits this Opposition to Defendants' Motion to Dismiss and Motion to Strike (ECF No. 22). For the reasons stated in the accompanying Memorandum of Points and Authorities, the motion should be denied in its entirety or, in the alternative, leave to amend should be granted.

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MEMORANDUM OF POINTS AND AUTHORITIES

I. INTRODUCTION

Defendants' motion asks the Court to decide this case on their version of the night of November 1, 2024, rather than on the version the First Amended Complaint ("FAC," ECF No. 5) actually pleads. The motion's introduction states as fact that the officers "noticed a strong smell of alcohol" when they opened the door. (Mot. 1.) The FAC alleges the opposite: that the officers' own dashcam recording captures no such observation, that the only liquid the officers found was identified aloud by Officer Melano as urine, that Plaintiff spoke coherently and identified his location, and that Officer Meza-Gonzalez nonetheless swore under penalty of perjury to a strong odor of alcohol, slurred speech, and disorientation. (FAC ¶¶ 15–20, 26–27.) On a Rule 12(b)(6) motion, those allegations are accepted as true.

Once the FAC is read as written, each of Defendants' arguments reduces to a request that the Court adopt an officer's disputed account over the pleaded facts, or draw inferences in Defendants' favor. That is not the standard. The motion should be denied. In the alternative, any defect the Court identifies is curable, and leave to amend should be granted.

II. STATEMENT OF ISSUES TO BE DECIDED

1. Whether the FAC plausibly alleges that Officer Meza-Gonzalez made deliberately or recklessly false statements and omissions that were material to the blood-draw warrant (Count One).

2. Whether the FAC states a Fourteenth Amendment deliberate-fabrication claim where the fabricated statements caused deprivations of liberty and of Plaintiff's commercial driver's license, notwithstanding that no criminal charges were filed (Count Two).

3. Whether Defendants have established, from the face of the FAC, an exception to the warrant requirement for opening Plaintiff's vehicle door, seizing the cup, and arresting Plaintiff (Counts Three, Four, and Five).

4. Whether the FAC plausibly alleges that Plaintiff's refusal of a voluntary preliminary alcohol screening ("PAS") test was a but-for cause of his arrest (Count Six).

5. Whether qualified immunity can be resolved on the pleadings where the defense depends on facts the FAC disputes.

6. Whether the prayer for punitive damages and fees may be stricken under Rule 12(f), and whether leave to amend should be granted if any claim is dismissed.

III. STATEMENT OF FACTS AS ALLEGED IN THE FAC

Plaintiff is a professional commercial truck driver holding a Class A commercial driver's license. (FAC ¶¶ 1, 12.) In the early hours of November 1, 2024, feeling fatigued, he left the travel lanes of eastbound Interstate 580, parked on the right shoulder near the Isabel Avenue exit in Livermore, and rested in the driver's seat. (*Id.* ¶ 11.) No officer observed him driving. (*Id.*)

At approximately 00:54:36, a CHP patrol vehicle stopped behind the parked car and its dashcam began recording continuously until approximately 01:57:10. (*Id.* ¶ 13.) Before either officer spoke to Plaintiff, Officer Melano remarked, "It's a rental. Huh," then, "It wasn't here earlier when we passed by," and then, looking at a cup through the window, "I think it's booze." (*Id.* ¶¶ 14–15.) At 00:56:43, with Plaintiff still asleep, Officer Melano opened the front passenger door. (*Id.* ¶ 16.) The FAC alleges that no consent, warrant, medical emergency, ongoing crime, or other exigency was present or articulated; the vehicle was intact on the shoulder with no damage, smoke, or debris, and the occupant was in a normal resting posture. (*Id.* ¶¶ 16, 56.)

Between 00:58:49 and 00:59:07, Officer Melano seized the cup, smelled it, and announced: "Is it water? No this is piss. This is pee. . . . I'm telling you it's piss. It smells like piss." (*Id.* ¶ 17.) The officers nonetheless continued the detention, ordered Plaintiff out onto uneven ground, and administered field sobriety exercises; Officer Melano acknowledged on the recording that the ground was unsuitable and declined to perform certain balance-dependent tests for that reason. (*Id.* ¶ 19.) Throughout, Plaintiff spoke coherently: he

spelled his surname on request, discussed the rental Tesla's mechanical features, explained commercial-driver fatigue protocols, and correctly identified his location as Livermore. (*Id.* ¶ 20.) At no point on the recording does either officer verbalize an observation of alcohol odor. (*Id.*)

At 01:10:54, Officer Meza-Gonzalez told Plaintiff the PAS test was voluntary: "You're not required to do this." (*Id.* ¶ 21.) At 01:11:03 he added: "If you choose to not consent to it, then it'll be up to my discretion whether I put you under arrest for DUI or not." (*Id.* ¶ 22.) Plaintiff declined. (*Id.* ¶ 23.) Between 01:11:15 and 01:11:33, Officer Meza-Gonzalez placed him under arrest; no new observation or evidence intervened. (*Id.* ¶¶ 24, 67.)

Officer Meza-Gonzalez then executed under penalty of perjury a DMV DS-367 Officer's Statement and a CHP arrest report, which the FAC alleges on information and belief were submitted to the reviewing magistrate as the basis for a blood-draw warrant. (*Id.* ¶¶ 25, 40.) Those documents state that he detected a "strong distinct odor of an alcoholic beverage," that Plaintiff's speech was "slurred," and that Plaintiff "seemed very confused and disoriented." (*Id.* ¶ 26(a)–(c).) They omit that the suspected alcohol was identified as urine, that certain field sobriety tests were not administered because of ground conditions, that the PAS was expressly described as voluntary, and that no officer saw Plaintiff drive. (*Id.* ¶ 27.) A magistrate issued a warrant, and Plaintiff's blood was forcibly drawn at the CHP Dublin Area office. (*Id.* ¶ 29.) He was booked at Santa Rita Jail. (*Id.* ¶ 31.) On November 5, 2024, CHP issued a Penal Code section 851.6 certificate stating the custody "was a detention only, not an arrest," with release for "insufficient grounds for making a criminal complaint." (*Id.* ¶ 32.) The District Attorney declined to file charges. (*Id.* ¶ 34.) The DS-367 initiated an administrative-per-se proceeding that resulted in a one-year suspension of Plaintiff's Class A license and a one-year commercial disqualification. (*Id.* ¶¶ 36(d), 37.)

Two clarifications are appropriate. First, paragraph 13 pleads the recording's start and end times; the descriptive phrase "over two hours" in paragraphs 20 and 26(a) should read as the period those timestamps define, approximately one hour, and Plaintiff will conform it on

amendment. Second, the DS-367 entry described in paragraph 26(d) appears within the form's alcohol-odor section rather than as a separate statement that a beverage was found. Plaintiff therefore does not rely on paragraph 26(d) as a distinct misstatement in this opposition and treats it together with the odor representation in paragraph 26(a). Neither clarification affects the three sworn representations and four omissions on which Counts One and Two rest.

IV. LEGAL STANDARD

A complaint survives a Rule 12(b)(6) motion if it contains "enough facts to state a claim to relief that is plausible on its face." *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 570 (2007). The Court accepts the factual allegations as true and draws all reasonable inferences in the plaintiff's favor. *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009). "[A] well-pleaded complaint may proceed even if it strikes a savvy judge that actual proof of those facts is improbable." *Twombly*, 550 U.S. at 556. Where "there are two alternative explanations, one advanced by defendant and the other advanced by plaintiff, both of which are plausible, plaintiff's complaint survives a motion to dismiss." *Starr v. Baca*, 652 F.3d 1202, 1216 (9th Cir. 2011). Pro se pleadings are construed liberally. *Hebbe v. Pliler*, 627 F.3d 338, 342 (9th Cir. 2010).

Defendants may not supplement the FAC with their own narrative. The motion's assertions that the officers stopped "to check if [Plaintiff] needed assistance" and "noticed a strong smell of alcohol" (Mot. 1) appear nowhere in the FAC, which alleges the contrary. Even where a document is properly before the Court, "it is improper to assume the truth of an incorporated document if such assumptions only serve to dispute facts stated in a well-pleaded complaint." *Khoja v. Orexigen Therapeutics, Inc.*, 899 F.3d 988, 1003 (9th Cir. 2018). Plaintiff objects, under Civil Local Rule 7-3(a), to the Court's consideration of any factual assertion in the motion that is not drawn from the FAC.

V. ARGUMENT

A. Count One States a Judicial Deception Claim.

A plaintiff states a judicial deception claim by alleging that the officer "deliberately or recklessly made false statements or omissions that were material to the finding of probable cause." *Benavidez v. County of San Diego*, 993 F.3d 1134, 1147 (9th Cir. 2021); *Chism v. Washington State*, 661 F.3d 380, 386 (9th Cir. 2011). Materiality is assessed by correcting the affidavit, removing the false statements and adding the omitted facts, and asking whether what remains supports probable cause. *Franks v. Delaware*, 438 U.S. 154, 155–56 (1978); *Chism*, 661 F.3d at 386. Defendants challenge both elements. Neither challenge succeeds on the pleadings.

1. Deliberate or reckless falsity is plausibly alleged.

Defendants argue that an officer need not say aloud everything he perceives, so the recording's silence on alcohol odor proves nothing. (Mot. 5–6.) That is an argument about what inference a factfinder should ultimately draw. It is not a basis to dismiss. The FAC does not rest on silence alone. It alleges that the officer who claimed to perceive an odor was standing beside a colleague who narrated every other significant observation on the recording, including a guess that a cup held "booze" and the subsequent finding that it held urine; that the "slurred" speech was, on the recording, extended coherent conversation including letter-by-letter spelling; that the "confused and disoriented" subject correctly identified his location and read distant signage; and that the same officer omitted every fact pointing away from impairment. (FAC ¶¶ 15–20, 26–27.) Defendants' competing explanation, that each statement was innocently true, is a plausible alternative at most. Under *Starr*, the plaintiff's plausible account controls at this stage. 652 F.3d at 1216.

The pattern matters. In *Chism*, the Ninth Circuit reversed summary judgment on a judicial deception claim, reasoning that "the fact that all of the . . . omissions and misstatements served to bolster, not undermine, the case for probable cause" supported a

finding that the officer "acted with at least a reckless disregard for the truth." 661 F.3d at 388–89. That reasoning applies with greater force on a motion to dismiss, where no evidence has been taken. The FAC alleges precisely such a one-directional pattern: three affirmative statements that supply indicia of intoxication, and four omissions that each would have pointed the other way. (FAC ¶¶ 26–27, 41.) It also alleges that the officer personally observed the events and that the contradicting recording was stored on his own patrol vehicle. (*Id.* ¶¶ 41, 46.) An officer who swears to observations contradicted by a recording in his own custody has, at minimum, plausibly acted with reckless disregard.

Defendants' reliance on *Hervey v. Estes*, 65 F.3d 784, 789 (9th Cir. 1995), for a "substantial showing" requirement is misplaced. *Hervey* addressed what a plaintiff must establish to survive summary judgment on qualified immunity. The Ninth Circuit has expressly rejected any heightened pleading standard for judicial deception claims. *Galbraith v. County of Santa Clara*, 307 F.3d 1119, 1126 (9th Cir. 2002). The question here is plausibility, and the FAC meets it.

2. Materiality cannot be resolved against Plaintiff on this record.

Defendants contend that, even without the challenged statements, the remaining report establishes probable cause because Plaintiff was asleep in a car on the freeway shoulder, a cup was present, field sobriety tests were conducted, and the FAC is "conspicuously silent" about the test results. (Mot. 6.) The argument fails for three reasons.

First, Defendants have not placed the warrant application before the Court and do not identify what it says. Materiality under *Franks* is a question the Court answers by examining the corrected affidavit, not by hypothesizing what an affidavit might contain. *Chism*, 661 F.3d at 386–89. On this motion the only pleaded account of the warrant application is the FAC's, and the FAC alleges that, corrected, it would reflect "a commercial driver parked and asleep on a highway shoulder; a cup identified by the investigating officer as urine; coherent, oriented conversation; no verbalized alcohol odor; and refusal of a test the officer had just described as voluntary." (FAC ¶ 30.) Those facts do not establish probable cause that Plaintiff

drove while impaired.

Second, Defendants' argument depends on an inference adverse to Plaintiff: that because the FAC does not recite the results of field sobriety tests, the Court should assume Plaintiff failed them. The FAC alleges the opposite inference, that the officer administering the tests acknowledged the ground was unsuitable and declined to perform balance-dependent exercises, and that the arrest report omitted this fact. (FAC ¶¶ 19, 27.) On a motion to dismiss, the Court draws inferences for the plaintiff, not against him.

Third, Defendants cannot build materiality out of the very statements under challenge. The motion's list of remaining facts quietly retains the officers' position that Plaintiff showed "signs of impairment." (Mot. 6.) The FAC alleges that the recorded signs point the other way. (FAC ¶¶ 20, 26.) A corrected affidavit that strips the odor, speech, and orientation claims and adds the urine identification and the voluntary-test advisement leaves a sleeping driver on a shoulder and a cup of urine. Whether that supports probable cause for a compelled blood draw is, at a minimum, not a question that can be resolved against Plaintiff on the pleadings. Materiality is for the Court, *Chism*, 661 F.3d at 387, but it must be decided on the actual corrected application, and the FAC plausibly alleges that the application fails the test.

B. Count Two States a Fourteenth Amendment Fabrication Claim.

Defendants advance two arguments: that Count Two duplicates Count One, and that a fabrication claim requires criminal charges. (Mot. 7.) Both fail.

1. Count Two is not duplicative.

The two counts arise under different amendments, require different showings, and address different injuries. Count One addresses the use of false statements to obtain a warrant, and its injury is the compelled blood draw. (FAC ¶¶ 39–42.) Count Two addresses the deliberate fabrication of evidence that was used to bring about additional deprivations: continued custody, the administrative-per-se suspension of Plaintiff's Class A license and commercial disqualification, and the referral of charges. (*Id.* ¶¶ 44–47, 36(d), 37.) A driver's license, once issued, is a protected interest; its suspension "adjudicates important interests of the licensees," and such licenses "may become essential in the pursuit of a livelihood." *Bell v. Burson*, 402 U.S. 535, 539 (1971). The DS-367 that the FAC alleges to be fabricated was the statutory basis for that proceeding. (FAC ¶ 37.) That injury is not redressed by Count One, and pleading it under the Fourteenth Amendment is not redundancy.

2. A criminal charge is not an element of the claim.

Defendants read *Caldwell v. City & County of San Francisco*, 889 F.3d 1105 (9th Cir. 2018), and Model Civil Jury Instruction 9.38 to require criminal charges. Neither does. *Caldwell* held that a plaintiff "need not be convicted on the basis of the fabricated evidence to have suffered a deprivation of liberty – being criminally charged is enough." 889 F.3d at 1115. That is a statement of sufficiency, not necessity. The current version of Instruction 9.38, the authority Defendants cite, lists the qualifying deprivation in the alternative: evidence "used to [criminally charge] [prosecute] [convict] [other deprivation of liberty] the plaintiff." Ninth Cir. Model Civ. Jury Instr. 9.38 (2024 ed.). The comment to the same instruction confirms that deliberate fabrication violates due process when the fabricated evidence is used in civil proceedings. *Id.* cmt. (citing *Hardwick v. Vreeken*, 844 F.3d 1112, 1120 (9th Cir. 2017)).

The Ninth Circuit so held before the events here. In *Costanich v. Department of Social & Health Services*, 627 F.3d 1101 (9th Cir. 2010), the court held that an investigator who deliberately fabricated evidence used in civil proceedings to deprive the plaintiff of protected

interests violated due process, and that "going forward" officials who do so are not entitled to qualified immunity. *Id.* at 1108, 1115. The FAC alleges deliberate fabrication used to sustain custody and to strip Plaintiff of the license on which his livelihood depended. (FAC ¶¶ 45–47.) That states a claim regardless of the District Attorney's declination. Indeed, the declination and CHP's own certificate that there were "insufficient grounds for making a criminal complaint" (*id.* ¶ 32) corroborate, rather than defeat, the allegation that the sworn statements did not describe what actually occurred.

Finally, Defendants' contention that the FAC does not plausibly allege knowing fabrication (Mot. 3) fails for the reasons stated in Part V.A.1. The FAC alleges that the officer personally heard Plaintiff's speech, personally observed his orientation, was present for the urine identification, and then swore to the contrary. (FAC ¶ 46.) "[D]eliberate fabrication can be shown by direct evidence," and an officer who deliberately mischaracterizes evidence in investigative reports is liable. *Spencer v. Peters*, 857 F.3d 789, 798 (9th Cir. 2017).

C. Defendants Have Not Established an Exception to the Warrant Requirement for the Entry, the Search, or the Arrest.

Defendants concede, as they must, that opening the door of Plaintiff's vehicle was a search. *United States v. Ngumezi*, 980 F.3d 1285, 1289 (9th Cir. 2020). Warrantless searches are presumptively unreasonable, and the government bears the burden of establishing an exception. Defendants offer two: emergency aid and probable cause. (Mot. 7–11.) Each depends on facts the FAC does not allege or affirmatively contradicts.

1. The FAC pleads no objective basis for an emergency-aid entry (Count Four).

The emergency-aid exception permits entry when officers have "an objectively reasonable basis for believing that an occupant is seriously injured or imminently threatened with such injury." *Brigham City v. Stuart*, 547 U.S. 398, 400, 403–04 (2006). The Ninth Circuit requires both that objective basis and that "the search's scope and manner were reasonable to meet the need." *United States v. Snipe*, 515 F.3d 947, 952 (9th Cir. 2008). A search justified by exigency "must be strictly circumscribed by the exigencies which justify its initiation." *Mincey v. Arizona*, 437 U.S. 385, 393 (1978).

Defendants' argument is that a person asleep in a parked car is, by that fact alone, plausibly in medical distress, and that officers "could not have known" otherwise "before opening the door." (Mot. 8.) The FAC alleges facts to the contrary. The vehicle was parked intact on the shoulder with no damage, smoke, fire, or debris; the occupant was in a normal resting posture; and the officers' own recorded words before the entry ("It's a rental," "It wasn't here earlier," "I think it's booze") describe what they were actually perceiving: a parked rental car and a cup, not a person in distress. (FAC ¶¶ 14–16, 56.) No officer knocked, called out, or otherwise attempted to rouse Plaintiff before opening the door. (*Id.* ¶¶ 15–16.) Those are objective facts bearing on whether a reasonable officer would have believed someone was seriously injured. *Brigham City* asks what the officers had an objective basis to believe, not what they could not rule out. 547 U.S. at 404. Defendants' position would convert every sleeping motorist into an exigency.

The scope prong fails independently. Even if a check on Plaintiff's welfare were warranted, the FAC alleges that the officers proceeded to seize and smell a cup from the interior, order Plaintiff out, and conduct a DUI investigation. (FAC ¶¶ 17, 19, 60.) An entry to *see* whether a sleeping person is breathing does not authorize rummaging for the contents of a container. *Mincey*, 437 U.S. at 393; *Snipe*, 515 F.3d at 952. Defendants' remaining cases involved officers responding to reported 911 calls, visible injuries, or ongoing violence; none holds that a person asleep in an undamaged parked car presents an emergency.

2. The FAC does not plead probable cause to enter or search (Counts Four and Five).

Defendants alternatively argue that the officers had probable cause because Plaintiff was parked on the shoulder in violation of Vehicle Code section 21718 and because of "perceived alcohol." (Mot. 8–10.) Section 21718(a) forbids stopping on a freeway "except . . . [w]hen necessary to avoid injury or damage to persons or property." Cal. Veh. Code § 21718(a)(1). The FAC alleges that Plaintiff pulled off because he was fatigued, consistent with CHP's own guidance to drowsy drivers. (FAC ¶¶ 11–12.) Whether that falls within the statutory exception is, at a minimum, a factual question, and in any event a parking infraction does not supply probable cause that the vehicle contains evidence of a crime, which is what the automobile exception requires. *Arizona v. Gant*, 556 U.S. 332, 347 (2009).

The "perceived alcohol" theory fares no better. Before the door was opened, the only pleaded basis for suspecting alcohol was Officer Melano's remark, made looking through a window at night, "I think it's booze." (FAC ¶ 15.) A guess about an opaque cup is not probable cause. And whatever suspicion the cup generated dissipated when the officer handling it identified its contents as urine and said so. (*Id.* ¶¶ 17–18.) Officers may not disregard facts that dissipate probable cause; in *Sialoi v. City of San Diego*, the Ninth Circuit held that a seizure became unlawful once officers learned the suspected weapon was a toy. 823 F.3d 1223, 1231–33 (9th Cir. 2016). The FAC alleges that the only other "fact" supporting a search, the odor, was never perceived. (*Id.* ¶¶ 20, 26(a).) Defendants cannot rely on the disputed odor to justify the search while asking the Court to assume its truth.

3. The FAC plausibly alleges an arrest without probable cause (Count Three).

Probable cause to arrest is measured by "the facts known to the arresting officer at the time of the arrest." *Devenpeck v. Alford*, 543 U.S. 146, 152 (2004). Defendants' list of the facts supporting arrest (Mot. 10–11) includes, as item four, the officer's report of a strong alcohol odor and slurred speech. Those are the sworn representations the FAC alleges to be false. (FAC ¶ 26.) Removing them, as the Court must on this motion, leaves: a driver asleep in a lawfully stopped car on a shoulder; a cup the investigating officer identified as urine; field sobriety exercises whose results Defendants do not identify and which the administering officer partly declined to perform because of the terrain; and a refusal of a test the officer had just described as voluntary. (*Id.* ¶¶ 19–24, 50.)

Those facts do not establish probable cause that Plaintiff drove under the influence. The FAC alleges that, in the officers' presence, Plaintiff spoke coherently, spelled his name, discussed mechanical details, and identified his location. (*Id.* ¶ 20.) It alleges that no officer observed him driving. (*Id.* ¶¶ 11, 27.) And it alleges that nothing changed between the PAS refusal and the arrest. (*Id.* ¶ 24.) California law required the officer to advise Plaintiff "of the person's right to refuse to take the preliminary alcohol screening test," Cal. Veh. Code § 23612(i), and he did so. (FAC ¶ 21.) Exercising a right the officer had just announced cannot itself supply the probable cause that was otherwise absent. Defendants' contrary position, that the refusal "further supported" probable cause (Mot. 11), is the proposition the FAC contests, and it is tested on a developed record, not on the pleadings.

Defendants' assertion that probable cause "is a question of law" (Mot. 10) is true only where the historical facts are undisputed. Here they are disputed at the threshold. The FAC alleges that CHP itself later certified the custody as "a detention only, not an arrest" for "insufficient grounds," and that the District Attorney declined to charge. (FAC ¶¶ 32–34, 51.) Those allegations do not by themselves establish a constitutional violation, and the FAC does not say they do; but they are consistent with, and corroborate, the pleaded absence of probable cause. Both defendants are properly named: the FAC alleges that Officer Melano conducted the entry and search, administered the field exercises, communicated his findings

to Officer Meza-Gonzalez throughout, and remained an active participant through the arrest. (*Id.* ¶ 53.)

D. Count Six Plausibly Alleges But-For Causation.

Defendants' only developed challenge to the retaliation claim is causation: they argue that Officer Meza-Gonzalez's statement merely described his lawful discretion and that the FAC offers "no facts" showing the refusal caused the arrest. (Mot. 11–12.) The FAC alleges three facts that together are direct evidence of causation. The officer told Plaintiff that if he did not consent, "it'll be up to my discretion whether I put you under arrest for DUI or not." (FAC ¶ 22.) Plaintiff refused. (*Id.* ¶ 23.) Within eighteen seconds, and with no intervening observation, the officer arrested him. (*Id.* ¶¶ 24, 67–68.)

An officer's own statement linking the arrest decision to the suspect's choice whether to exercise a right, followed almost immediately by the arrest when the right is exercised, is not speculation about motive. It is the officer's stated reason. Defendants offer an innocent reading of the same words, but "where there are two alternative explanations . . . both of which are plausible," the complaint survives. *Starr*, 652 F.3d at 1216. Nor does *Bostock* help Defendants. *Bostock* explains that but-for causation is met whenever the outcome would not have occurred absent the protected conduct, and that "[o]ften, events have multiple but-for causes." 590 U.S. 644, 656 (2020). The FAC alleges that nothing but the refusal separated the pre-refusal decision not to arrest from the post-refusal arrest. (FAC ¶ 24.) That is a but-for allegation.

Defendants do not contest, in this motion, that refusing a statutorily voluntary test is protected activity, and they do not argue that probable cause defeats the claim under *Nieves v. Bartlett*, 587 U.S. 391 (2019). The FAC pleads both that no probable cause existed and, in the alternative, objective evidence of differential treatment. (FAC ¶ 69.) Arguments raised for the first time in reply should not be considered. *Zamani v. Carnes*, 491 F.3d 990, 997 (9th Cir. 2007).

E. Qualified Immunity Cannot Be Resolved on These Pleadings.

Determining qualified immunity on a motion to dismiss "raises special problems," because the plaintiff's allegations must be accepted as true; dismissal is appropriate only if "the complaint fails to allege facts sufficient to state a claim of violation of clearly established law." *Keates v. Koile*, 883 F.3d 1228, 1234–35 (9th Cir. 2018). Defendants' qualified immunity argument (Mot. 12–13) restates their merits arguments and adds a reframing: that no case holds officers liable for arresting a person asleep on a freeway shoulder "with open containers of alcohol" where they "believed" he smelled of alcohol and showed signs of impairment. (Mot. 13.) That is not the conduct the FAC alleges. The FAC alleges no open container of alcohol, no perceived odor, and no signs of impairment; it alleges that those indicia were asserted after the fact in sworn documents contradicted by the officers' own recording. A defendant cannot obtain qualified immunity on the pleadings by describing a different set of facts.

Measured against the pleaded facts, each right was clearly established before November 1, 2024. An officer may not procure a warrant through deliberate or reckless material falsehoods or omissions. *Franks*, 438 U.S. at 155–56; *Chism*, 661 F.3d at 393 (denying qualified immunity). An official may not deliberately fabricate evidence to bring about a deprivation of liberty or property, including in civil proceedings. *Devereaux v. Abbey*, 263 F.3d 1070, 1074–75 (9th Cir. 2001) (en banc); *Costanich*, 627 F.3d at 1115. Opening a vehicle door is a search requiring a warrant or an exception, *Ngumezi*, 980 F.3d at 1289; the emergency-aid exception requires an objectively reasonable basis to believe someone is seriously injured, *Brigham City*, 547 U.S. at 403–04; and officers may not continue a seizure after the facts supporting it have dissipated, *Sialoi*, 823 F.3d at 1231–33. An arrest without probable cause violates the Fourth Amendment. *Devenpeck*, 543 U.S. at 152. And an arrest in retaliation for protected activity, absent probable cause, violates the First Amendment. *Nieves*, 587 U.S. at 398–99, 404. Whether Defendants in fact had the odor, impairment, and emergency they describe is the factual dispute at the center of this case, and it cannot be resolved against Plaintiff on a Rule 12(b)(6) motion.

F. The Motion to Strike Should Be Denied.

Rule 12(f) permits a court to strike "redundant, immaterial, impertinent, or scandalous matter." It "does not authorize district courts to strike claims for damages on the ground that such claims are precluded as a matter of law." *Whittlestone, Inc. v. Handi-Craft Co.*, 618 F.3d 970, 974–75 (9th Cir. 2010). Defendants' motion to strike punitive damages is, in substance, an argument that the FAC fails to state a basis for them, which is a Rule 12(b)(6) argument, and it fails on its own terms. Punitive damages are available under section 1983 where the defendant's conduct "is shown to be motivated by evil motive or intent, or when it involves reckless or callous indifference to the federally protected rights of others." *Smith v. Wade*, 461 U.S. 30, 56 (1983). The FAC alleges that Officer Meza-Gonzalez swore to observations contradicted by a recording in his own custody, omitted every exculpatory fact, and arrested Plaintiff within seconds of a refusal he had just tied to the arrest decision; and that Officer Melano opened a sleeping man's car door on the stated hypothesis that a cup held "booze," identified the contents as urine, and continued the detention anyway. (FAC ¶¶ 15–27, 41, 46.) Whether that conduct reflects reckless or callous indifference is a jury question that cannot be resolved by striking the prayer.

As to fees, Plaintiff agrees that a pro se litigant who is not an attorney may not recover attorney's fees under 42 U.S.C. § 1988 for his own time. *Kay v. Ehrler*, 499 U.S. 432, 435 (1991). The FAC seeks fees only "to the extent recoverable" (FAC, Prayer ¶ C), which preserves recovery should counsel appear. Plaintiff does not oppose an order clarifying that no fees are sought for his own pro se work. Costs remain recoverable under Rule 54(d), and nothing in *Kay* supports striking that request.

G. If Any Claim Is Dismissed, Leave to Amend Should Be Granted.

Leave to amend should be granted "unless [the court] determines that the pleading could not possibly be cured by the allegation of other facts," a rule applied "with particular force" to pro se litigants. *Lopez v. Smith*, 203 F.3d 1122, 1130–31 (9th Cir. 2000) (en banc) (citation omitted). Rule 15's policy of "extreme liberality" creates a presumption in favor of amendment absent a showing of bad faith, undue delay, prejudice, or futility. *Eminence Capital, LLC v. Aspeon, Inc.*, 316 F.3d 1048, 1052 (9th Cir. 2003).

Defendants do not argue that any identified defect is incurable. They argue instead that Plaintiff has litigated this incident before and should therefore be denied the ordinary opportunity to amend. (Mot. 13–14.) That is not the futility standard. Defendants do not contend that any prior ruling bars this action; the FAC itself discloses the prior proceedings and that the prior federal action was voluntarily dismissed without prejudice. (FAC ¶ 35.) Other dockets may be noticed for their existence, not for the truth of their contents or for a characterization of Plaintiff's history. *Khoja*, 899 F.3d at 999–1001. This is the first motion to dismiss directed at this pleading, and the FAC was filed before any responsive pleading.

Should the Court find any claim deficient, Plaintiff can allege additional facts, including: the specific sworn warrant application submitted to the magistrate and its contents, with the challenged statements and omissions identified against that document; conforming revisions to paragraphs 20, 26(a), and 26(d) as described in Part III; the specific recorded statements and timestamps reflecting each officer's observations before the entry and before the arrest; and additional detail regarding each officer's personal participation in the entry, search, and arrest. Plaintiff respectfully requests leave to file a Second Amended Complaint within thirty days of any order granting the motion in part.

VI. CONCLUSION

The FAC pleads, with timestamps drawn from the officers' own recording, that Plaintiff was asleep, coherent, and sober-appearing; that the only suspected alcohol was urine; that he was arrested within seconds of exercising a right the officer had just told him he had; and that the sworn statements used to draw his blood and suspend his license said otherwise. Defendants' motion disputes those facts. It does not show that they fail to state a claim. The motion to dismiss and motion to strike should be denied. In the alternative, Plaintiff requests leave to amend.

Dated: November ___, 2026

Respectfully submitted,

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BRENDAN NGWA NFORBI

Plaintiff, In Pro Per